

INTA Practice Guides Report

Country Guides

United States

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

Eric Fingerhut, Dykema Gossett PLLC,

I. General — A. Rights Afforded by Registration

- Registration is not required to establish rights in a trademark; sufficient prior use establishes rights in a trademark; this is a "first-to-use" jurisdiction.
- Use of an unregistered mark for any goods or services is legal, with the caveat that "use" here refers to lawful use in commerce. Lawful use in commerce of an unregistered mark for any goods or services is legal. Some marks—for example, those used for certain pharmaceutical preparations—require regulatory approval before they can be lawfully used in commerce. Similarly, some products require regulatory approval before they can be sold; if they are sold prematurely, the use of the marks associated with them may be deemed unlawful, in which case the marks are ineligible for federal protection. Still other products, such as marijuana, are illegal to sell in interstate commerce, and the marks associated with them are therefore also ineligible for federal protection.
- No legislation regarding plain packaging has been enacted in this jurisdiction, and it is not under active consideration.

I. General — B. Time Frame for Obtaining Registration

- The approximate time from application to registration (for a regular prosecution, without opposition) is: between 12 and 18 months.

I. General — C. Advantages of Registration

- The benefits of registering a trademark include the following: it provides prima facie evidence of ownership and validity; it provides regional, national, and/or local protection; it allows use of "Registered Trademark" or other suitable terms or abbreviations to demonstrate ownership of the trademark; it allows the registrant access to bring actions in particular courts; it helps to deter others from unlawfully using the trademark; it provides a defense to infringement; enforcement of an unregistered trademark is more difficult and more costly than enforcement of a registered trademark; it confers the ability to recover maximum monetary damages for infringement; it encourages licensees and provides the opportunity to generate royalties through licensing; other: it enables the owner to record the registration with the Trademark Clearinghouse, which provides registration owners access to the TLD (top-level domain) sunrise periods and the Clearinghouse claims service. The risk of not registering a trademark is that others may register an identical or similar mark that could impede the ability to use or register the mark in the United States. Federal registration is prima facie evidence of the right to use the mark. Registrations can be recorded with U.S. Customs to help prevent the importation of counterfeit products. Ownership of a valid federal trademark registration is a complete bar to a dilution action brought under common law and state dilution statutes. In an infringement action, a trademark registrant is entitled to the full scope of damages, namely, (1)

defendant's profits, (2) any damages sustained by the plaintiff, and (3) the costs of the action. Also, in actions for cybersquatting under Section 43(d) of the Federal Trademark Act of 1946 (Lanham Act), the registrant can elect, in lieu of actual damages and profits, an award of statutory damages in the amount of not less than \$1,000 and not more than \$100,000 per domain name, as the court considers just.

II. Pre-Filing — A. Registrable Trademarks

- The following signs that can be reproduced graphically and are capable of distinguishing the goods or services of one person or entity from another are registrable as a trademark: words; names; devices; certain three-dimensional shapes; colors; slogans; sounds; smells (olfactory trademarks); trade dress/get-up; taste; touch (See U.S. Reg. No. 3,155,702.).
- The special requirements for the registration of three-dimensional shapes are: Since 2000, the law in the United States has been that while product packaging may sometimes be distinctive, a three-dimensional shape (also referred to as product configuration) can never be inherently distinctive. Three-dimensional shapes are registrable in the United States only upon a showing of secondary meaning or acquired distinctiveness under Section 2(f) of the Lanham Act. In addition to proving acquired distinctiveness for three-dimensional marks, an applicant seeking registration of a three-dimensional mark must also prove that the shape is not functional.
- The special requirements for the registration of colors are: Applications for color marks will be refused registration unless the applicant proves that the color has acquired distinctiveness as a mark under Section 2(f) of the Lanham Act.
- The special requirements for the registration of sounds are: Sounds may be registered in the United States when they are "arbitrary, unique or distinctive and can be used in a manner so as to attach to the mind of the listener and be awakened on later hearing in a way that would indicate for the listener that a particular product or service was coming from a particular, even if anonymous, source." *In re Vertex Grp. LLC*, 89 U.S.P.Q.2d 1694, 1700 (TTAB 2009). Sound marks include a series of tones or musical notes, with or without words, and wording accompanied by music. Sound mark applicants are not required to submit a traditional drawing with the application; rather, they must submit a detailed description of the mark and an audio reproduction of the sound mark in an electronic file in .wav, .wmv, .wma, .mp3, .mpg, or .avi format. The file must not exceed 5 MB in size.
- The special requirements for the registration of smells are: An applicant must submit a specimen that contains the scent and that matches the required description of the scent. The specimen can consist of the actual goods covered by the application or a "scratch and sniff" sticker, provided it is part of the packaging for the goods. Applicants for scent marks are not required to submit a traditional drawing with the application; rather, they must submit a detailed description of the mark.
- The special requirements for the registration of trade dress are: Unlike three-dimensional shapes, product packaging and other trade dress can be inherently distinctive. If so, it can be registered in the United States. If it is not inherently distinctive, it can be registered with proof of secondary meaning or acquired distinctiveness under Section 2(f) of the Lanham Act.
- The special requirements for the registration of taste are: Theoretically, taste marks or flavor marks are registrable. However, they are not inherently distinctive because they are regarded as a characteristic of the goods. Application to register a flavor "requires a substantial showing of acquired distinctiveness." See *In re Pohl-Boskamp GmbH & Co.*, 106 U.S.P.Q.2d 1042, at 1051–1052; however, this is an extremely high

burden of proof to meet.

- The special requirements for the registration of touch are: Applicant must submit a concise but detailed and accurate description of the touch mark as well as a sample of the product on which the touch mark is used. This enables the United States Patent and Trademark Office (USPTO) to examine whether the touch mark is functional or not. A non-inherently distinctive touch mark can acquire distinctiveness under Section 2(f) of the Lanham Act.
- Marks registered in black and white or grayscale are construed broadly to protect the mark both as registered and in other color combinations. A registration of the mark in black and white covers all color combinations whereas a registration of the mark in color covers only that particular color combination. If the registrant registers the mark in color and then stops using that particular color combination, it will not be able to maintain the color registration. On the other hand, if the mark is registered in black and white, so long as the mark is being used, it does not matter what colors comprise the mark. The mark can be maintained and renewed.
- In addition to regular trademark registrations, the following types of trademarks are registrable: collective marks; certification marks; service marks.
- Retail services are registrable provided that the nature of the retail services is clearly identified.
- The following are not registrable as trademarks: generic terms; names, flags, or symbols of states, nations, regions, or international organizations; non-distinctive trademarks, absent a showing of acquired distinctiveness (secondary meaning); marks that function principally as surnames; marks that function principally as geographic location names (but not geographical indications or appellations of origin).
- Geographical indications (GIs) are protected in this jurisdiction.
- GIs are protected by way of: trademark laws, in the form of collective marks or certification marks; laws against unfair competition; consumer protection laws.
- The following products or categories are subject to GI protection in this jurisdiction: none. There is no sui generis GI protection in the United States.

II. Pre-Filing — B. Searching

- While conducting a private pre-filing search is not mandatory, it is recommended in that it can: save the applicant the time, effort, and cost entailed in developing, adopting, and applying to register a trademark in which someone else has prior rights; disclose additional potentially conflicting trademarks, e.g., prior unregistered rights such as those gained at common law; other: help the trademark owner with its filing strategy.
- The national office is accessible online at the following URL: <http://www.uspto.gov>
- The official register can be searched online at the following URL: <https://tmsearch.uspto.gov/search/search-information>

II. Pre-Filing — C. Use

- An applicant benefits from pre-filing use of a trademark. By doing so, it establishes common-law rights and an actual first-use priority date that pre-dates the constructive use filing date of the application.
- The benefits of pre-filing use are: Use may demonstrate acquired distinctiveness (secondary meaning) and help to overcome an objection to an application to register the trademark on the ground of non-distinctiveness.
- When a mark is not registered, use of that mark may provide the following benefits: Protection against infringement may be available for trademarks with

substantial and long-standing use that are not registered.

- Famous and/or well-known marks are protected via the following mechanism(s): a determination by the court resulting from an action for infringement; a determination by the court (other than one resulting from an action for infringement) (the dilution law).

II. Pre-Filing — D. International Treaties

- This jurisdiction is a member of the following international treaties relating to intellectual property: Paris Convention; Trademark Law Treaty; Singapore Treaty; Madrid Protocol; Nice Agreement. Vienna Agreement.

III. Filing — A. Requirements

- If the applicant is not domiciled in this jurisdiction, a local address for service must be provided. All trademark applicants and registrants must provide and keep current their domicile address in trademark filings so the Trademark Office can determine the identity of the filer and whether the filer must be represented by a U.S.-licensed attorney to file documents with the Trademark Office.
- Joint applicants are permitted in this jurisdiction.
- Either actual use or intent to use is required for application.
- The following information is required to COMPLETE an application: name and address of applicant; state or country of incorporation; description of trademark; specimen of trademark (an actual article (or photograph of such article) showing a mark as used on or in connection with the goods or services claimed in an application or registration); representation of trademark (a depiction of the mark an applicant seeks to register); list of goods/services; statement of use; proof of use; dates of first use; statement of intention to use; official filing fee; priority claim, where priority of an earlier application is claimed.
- While ALL of the items noted in the list immediately above are required to COMPLETE an application, ONLY THE FOLLOWING ITEMS from that list are required in order to SECURE A FILING DATE: name and address of applicant; state or country of incorporation; representation of trademark (a depiction of the mark an applicant seeks to register); list of goods/services; statement of intention to use; official filing fee.
- The list of goods and services in this jurisdiction may specify: a list of names commonly used in the trade for the specific goods or services of interest.
- The following number of copies of the trademark must be submitted: one.
- Although not a filing requirement, a power of attorney might need to be submitted during prosecution in the following circumstances: if there is a change of attorney.
- In this jurisdiction, the following types of registration are available: local (e.g., state); national; international.
- This jurisdiction is a party to the Madrid Protocol but not the Madrid Agreement and may be designated in international applications.
- This jurisdiction is not a member of the European Union; a European Union Trade Mark registration is not effective in this jurisdiction.
- No (other) multinational regional registrations are available in this jurisdiction.
- An international application is subject to the same registrability requirements and examination procedure as a locally filed application. (See the entry for the Madrid System.)
- Applications can be filed online at the following URL: <https://trademarkcenter.uspto.gov/>
- The official file can be accessed online at the following URL: <https://tsdr.uspto.gov/>

- Applications are officially searched as to prior trademarks.

III. Filing — B. Priority

- If an applicant's home country is a signatory to the Paris Convention, the filing date of its home application can be claimed as the filing date in this jurisdiction, provided that its home application was filed within the fixed period of six months preceding the application in this jurisdiction. An International Registration can be based on a national application or registration in this jurisdiction.

III. Filing — C. Classification

- This jurisdiction uses the Nice Classification System.
- If a trademark is or will be used in more than one class of goods and/or services, one application can cover multiple classes of goods or services.
- For a multi-class application, the applicant must pay additional class fees if the goods/services fall into more than the following number of classes: one.

III. Filing — D. Representation

- An application to register a trademark may be filed directly in this jurisdiction by: the applicant, but only if a citizen of or domiciled in the jurisdiction; a trademark representative/attorney/agent, even if not a citizen of or domiciled in the jurisdiction (However, the representative/attorney must be licensed in the United States.).

IV. Application — A. Publication

- The filing particulars of an application are made available to the public.
- The filing particulars are made available to the public: through publication and online.
- The following application details are made available to the public: mark; name of applicant; address of applicant; state or country of incorporation of applicant; citizenship of applicant; application number; application date; goods/services; priority claim information; date of first use; representation of trademark; specimen(s) of use.

IV. Application — B. Examination

- Applications are examined in respect of: formalities: i.e., for compliance with the filing requirements; classification: i.e., to ensure that the goods or services fall within the class(es) listed in the application; clarity: i.e., that descriptions are clear and understandable; descriptiveness: i.e., to check whether a trademark functions solely to provide information about the goods and services affiliated with the trademark; distinctiveness: i.e., to ensure that trademarks are capable of being represented graphically and of distinguishing the goods or services of one individual or organization from those of other individuals or organizations; deceptiveness: i.e., to check whether a trademark is of such a nature as to deceive the public (for instance, as to the nature, quality, or geographic origin of the goods or services); conflict with prior registration, prior-filed application, or earlier unregistered rights resulting from an official search.
- If the local trademark authority issues a preliminary refusal to register a mark based on an earlier registration owned by another: The existence of a valid coexistence agreement between the applicant and the cited registrant may be accepted as evidence permitting registration of the application; its acceptance is at the discretion of the trademark authority.

- This jurisdiction has disclaimer practice (i.e., a practice whereby the applicant must disclaim any exclusive right to an element of a trademark that is not distinctive).
- The order of the application process is as follows: examination, publication, registration.

IV. Application — C. Prosecution

- Accelerated examination may be requested. One must file a "Petition to Make Special." A petition to make special is a request to the Director under 37 C.F.R. § 2.146 to advance the initial examination of an application out of its regular order. See TMEP §§ 1710 et seq. regarding the petition requirements and filing procedure. The examining attorney should promptly examine any application that has been made special. Invoking supervisory authority under 37 C.F.R. § 2.146 to make an application special is an extraordinary remedy that is granted only when very special circumstances exist, such as a demonstrable possibility of the loss of substantial rights. A petition to make special is denied when the circumstances would apply equally to a large number of other applicants. The fact that the applicant is about to embark on an advertising campaign is not considered a circumstance that justifies advancement of an application out of the normal order of examination because this situation applies to a substantial number of applicants. The most common reasons for granting petitions to make special are the existence of actual or threatened infringement, pending litigation, or the need for a registration as a basis for securing a foreign registration.
- A reason for acceleration is required. The following are considered acceptable reasons: A new application for registration of a mark that was the subject of a previous registration that was inadvertently canceled or expired under 15 U.S.C. § 1058, § 1059, or § 1141k will be made special upon the request of the applicant if the applicant is the prior registrant or the assignee of the prior registrant. The mark in the new application must be identical to the mark in the canceled or expired registration, and the goods/services in the new application must be identical to or narrower than the goods/services in the canceled or expired registration.
- A fee for acceleration is not required. However, a petition to make special must be accompanied by: (1) the usual filing fees required by 37 C.F.R. § 2.6; (2) an explanation of why special action is requested; and (3) a statement of facts that shows that special action is justified. The statement of facts should be supported by an affidavit or declaration under 37 C.F.R. § 2.20.
- The following rights are established by a pending application: the filing date of the application establishes a home filing date for purposes of priority; the filing date of the application establishes a constructive date of first use for an intent-to-use application; the pending application can be cited in official examination against a subsequent (later-filed) conflicting application; the pending application can be used in a third-party opposition proceeding against a subsequent (later-filed) conflicting application.

IV. Application — D. Opposition

- Opposition is available.
- Opposition is conducted pre-grant.
- The following can be grounds for opposition: proprietary rights, such as an earlier conflicting registration; the mark is descriptive, i.e., it consists of a sign or indication that may serve in trade to designate the kind, quality, quantity, intended purpose, or value of goods or of rendering of services or other characteristics of goods or

services;the mark is not distinctive;the mark is misleading, deceptive, or disparaging;the mark is functional;other: rights in a company name.Following the U.S. Supreme Court's decision in *Matal v. Tam*, 137 S. Ct. 1744 (2017), disparagement is no longer a basis for opposition.Following the U.S. Supreme Court's decision in *Iancu v. Brunetti*, 139 S. Ct. 2294 (2019), opposing an application on the basis that the mark is "immoral" or "scandalous" is no longer possible.

- An application is published for opposition purposes after formal examination of the application.
- The opposition period begins on the following date: the date upon which the application is published in the Official Gazette.
- The opposition period ends on the following date: The initial opposition period is 30 days from the date of publication. However, a potential opposer can obtain extensions of time to oppose for up to 180 days from the date of publication. After one or two extensions of time totaling 90 days are granted, one additional extension may be granted for 60 days. The final 60-day extension is available if it is upon written consent of the potential opposer and the applicant or if there is a showing of extraordinary circumstances.
- The following parties may initiate an opposition:any interested party (including persons or entities who believe they will be damaged by registration of the opposed mark);the owner of an earlier right.
- Oppositions can be filed online.

IV. Application — E. Proof of Use

- Proof of use is required prior to the issuance of a registration or the issuance of a notice of allowance/acceptance. There is a notable exception for applications based solely on a non-U.S. registration (Lanham Act § 44(e)) or when requesting an extension of protection of an International Registration to the United States (Lanham Act § 66(a)). Otherwise, proof of use in U.S. commerce is required for registration to issue. For Section 44(e) or 66(a) registrations, proof of use (or of excusable non-use) will be required to maintain a registration.
- Acceptable proof of use documents are:declaration from proprietor;specimens or samples of the trademark as used;details of goods/services for which the trademark has been used;documents showing use by licensee.

V. Assignment, Licensing, and Other Changes to Trademark Records — A. Assignment

- An application can be assigned.
- A registration can be assigned.
- An assignment of an application must be for the entire territory covered by the application.
- An assignment of a registration must be for the entire territory covered by the registration. A trademark owner may not use an assignment to impose geographic restrictions on a registration. This must be done by way of a concurrent use proceeding before the Trademark Trial and Appeal Board or pursuant to a final determination by a federal court (15 U.S.C. § 1052(d)).
- An assignment of an application can be for some or all of the goods or services listed in the application. An assignment may be made for a portion of the goods or services or a portion of the business associated with them; it may not be used to impose geographical restrictions.
- An assignment of a registration can be for some or all of the goods or services listed in the registration.

- Goodwill must be included in an assignment of an application.
- Goodwill must be included in an assignment of a registration.
- An assignment document for an application requires: name of assignor; address of assignor; name of assignee; address of assignee; details of the trademark being assigned; territory being assigned; effective date of the assignment; signature by assignor; consideration (either actual or nominal); other: special language regarding assignment of an intent to use application, if applicable. If an amendment to allege use or a statement of use has not yet been filed to support an intent-to-use application, the intent-to-use application may be assigned only in connection with the transfer of the business to which the application pertains, provided the business is ongoing and existing.
- An assignment document for a registration requires: name of assignor; address of assignor; name of assignee; address of assignee; details of the trademark being assigned; goods and services being assigned; effective date of the assignment; signature by assignor; consideration (either actual or nominal).
- Legal verification of a written assignment document of an application is not required.
- Legal verification of a written assignment document of a registration is not required.
- An assignment of an application need not be recorded, but if it is not recorded the assignment may not be effective against a subsequently dated but recorded assignment. An assignment shall be void against any subsequent purchaser for valuable consideration without notice unless the prescribed information reporting the assignment is recorded in the USPTO within three months after the date of the assignment or prior to the subsequent purchase (15 U.S.C. § 1060(a)).
- An assignment of a registration need not be recorded, but if it is not recorded the assignment may not be effective against a subsequently dated but recorded assignment. An assignment shall be void against any subsequent purchaser for valuable consideration without notice unless the prescribed information reporting the assignment is recorded in the USPTO within three months after the date of the assignment or prior to the subsequent purchase (15 U.S.C. § 1060(a)).

V. Assignment, Licensing, and Other Changes to Trademark Records — B. Licensing

- Use of a mark that is the subject of an application can be licensed.
- Use of a registered mark can be licensed.
- In this jurisdiction, registered trademark users (as opposed to licensees) cannot be recorded.
- A license of an application can be made for a portion of the territory covered by the application. Trademark and service mark licenses can be geographically restricted to a portion of the territory covered by the registration.
- A license of a registration can be made for a portion of the territory covered by the registration. Trademark and service mark licenses can be geographically restricted to a portion of the territory covered by the registration.
- A license of an application can be for some or all of the goods or services listed in the application; i.e., use of the trademark or service mark in the application can be licensed.
- A license of a registration can be for some or all of the goods or services listed in the registration; i.e., use of the registered trademark or service mark in the application can be licensed.
- A license of an application can be exclusive (only one licensee, with the owner excluded). A license of an application can be sole (only one licensee and the owner). A license of an application can be non-exclusive (multiple licensees and the owner).
- A license of a registration can be exclusive (only one licensee, with the owner

excluded). A license of a registration can be sole (only one licensee and the owner). A license of a registration can be non-exclusive (multiple licensees and the owner).

- Use by a related company of a mark that is the subject of an application need not be licensed.
- Use by a related company of a registered mark need not be licensed.
- A license of an application can be made with a time limitation.
- A license of a registration must be made with a time limitation (i.e., it cannot be perpetual). A perpetual license is tantamount to an assignment.
- A license document for an application requires: name of licensor; address of licensor; name of licensee; address of licensee; details of the trademark to be licensed; goods and services being licensed; commencement date of the license; term of the license; if the license has no limitation of time, a statement so indicating (The prevailing view is that a license should never be perpetual, as it can be construed as tantamount to an assignment. A trademark license can be long term (e.g., 99 years) with automatic renewals, but it should never be perpetual.); territory of the license; quality control provisions; signature by licensor; signature by licensee; express permission to sublicense, if appropriate.
- A license document for a registration requires: name of licensor; address of licensor; name of licensee; address of licensee; details of the trademark to be licensed; goods and services being licensed; commencement date of the license; term of the license; territory of the license; quality control provisions; simple signature by licensor (see below for execution requirements); simple signature by licensee (see below for execution requirements).
- Legal verification of a written agreement to license an application is not required.
- A license of an application need not be recorded to be effective.
- A license of a registration need not be recorded.
- The license for a renewed registration need not be re-recorded.
- Legal verification of a written agreement to license a registration is not required.

V. Assignment, Licensing, and Other Changes to Trademark Records — C. Other Changes to Trademark Records

- The requirements for the recordal of name changes, mergers, and other important corporate updates on trademark records are as follows: deed of assignment, without further formalities; certificate of proof of change of name, without further formalities; certificate of merger, without further formalities.
- The requirements regarding the recordal of updated addresses on trademark records are as follows: A change of address, either of the trademark owner or of the attorney of record, can be filed electronically. There are no requirements other than providing the new address. The electronic change of address form can be found at the following URL: <https://teas.uspto.gov/ccr/car>
- The requirements for recording liens against trademark records, such as security interests, are as follows: A security interest can be recorded electronically through the following URL: <https://assignmentcenter.uspto.gov/> A copy of the lien must be uploaded.

VI. Registration — A. Requirements

- A fee is not required for issuance of the registration.
- The following documentation is required for issuance of the registration: statement of use; specimens.

VI. Registration — B. Rights

- The following rights are established by registration: the exclusive right to use the registered trademark; the right to sue for infringement against confusingly similar third-party trademark use; the right to apply for seizure by customs authorities of counterfeit goods being imported into this jurisdiction.
- The Roman alphabet is used to represent the official language(s) of this jurisdiction.
- A trademark becomes incontestable, that is, the validity of the registration cannot be challenged, after the following time period: never. Once a registration on the Principal Register has passed its fifth anniversary, it can be canceled in a challenge brought by another party only on the grounds set forth in Section 14(3) of the Lanham Act, 15 U.S.C. § 1064(3), which include that the registered mark has become generic for the goods or services (or a portion of them) for which it is registered; that the mark is functional; that the mark has been abandoned; that the mark has been used to misrepresent the source of the goods and services associated with it, i.e., affirmative "passing off"; and that the registration was obtained fraudulently. Provided that the registered mark has been used continuously for five years and that there have been no final decisions adverse to the registrant's ownership of the mark, the registrant has the option at any point after five years of registration to file a declaration of incontestability under Section 15 of the Lanham Act, 15 U.S.C. § 1065. Upon the filing of such a declaration, and subject to the exceptions listed in Section 33(b) of the Lanham Act, 15 U.S.C. § 1115(b), the registration serves as "conclusive evidence of the validity of the registered mark and of the registrant's ownership of the mark, and of the registrant's exclusive right to use the registered mark in commerce," in litigation to protect the mark.
- The territorial limit of registration is: the geographical scope of the United States, its territories and possessions, including American Samoa, Guam, the Northern Mariana Islands, Puerto Rico, and the U.S. Virgin Islands.

VI. Registration — C. Term

- The initial term of a registration is: 10 years.
- The beginning of the term of a registration is calculated from: the registration date.

VI. Registration — D. Marking Requirements

- Marking is not compulsory for registered trademarks, but is advisable because: failure to use such notice precludes recovery of damages, except on proof that the defendant was duly notified of infringement and continued after notice.
- Any marking should be in the form(s) mentioned below. Please consult a local trademark attorney in case of doubt. TM (if an unregistered trademark); SM (if an unregistered service mark); ® (if a registered trademark or service mark).
- The use of ® is legally recognized.
- The legal consequences of false or misleading marking are: finding of bad faith; false advertising; and/or unfair competition. The deliberate misuse of a trademark registration symbol with the intent to mislead the public or the USPTO constitutes fraud. While most misuse of the trademark registration symbol is inadvertent and otherwise unintentional, the fraudulent misuse of the registration symbol can have many ramifications. First, a registration may be successfully attacked and canceled on the basis that it was fraudulently procured. In addition, a defendant who intentionally deceives purchasers by trying to pass off an unregistered mark as registered will likely be found a willful infringer, and a finding of willfulness could expose the symbol misuser to increased damages as well as to having to pay an

award of costs and attorney fees. In addition, the misuse of a registration symbol with an intent to deceive is clearly a form of false advertising. While most misuse of the trademark registration symbol is met with no more than a slap on the wrist or an admonishment from a USPTO examining attorney, the intentional misuse of the registration can have significantly more draconian and pecuniary consequences.

VII. Post-Registration — A. Use Requirements

- Attack on the ground of non-use is available.
- To avoid being attacked on the ground of non-use, a trademark must be used within the following period of time: three years from the registration date. Three or more years of non-use constitutes prima facie evidence of abandonment, which shifts the burden to the trademark owner to prove that it has an intention to resume use of the mark.
- To satisfy the use requirement, the amount of use:other: must be on a commercial scale, normally characterized as use in the ordinary course of trade.
- Use of the trademark must occur in:his jurisdiction.
- The consequences of a trademark's not being used are as follows: If use is discontinued for three consecutive years, or if requirements of periodic statements of use and other mandatory filings by the trademark owner setting forth use of the trademark are not met, the mark may be deemed abandoned or become vulnerable to cancellation on the ground of non-use.
- The following periodic statements of use or other mandatory filings by the trademark owner setting forth use of the trademark are required: To maintain a trademark registration, a trademark owner must continue a bona fide use of the mark in commerce in the ordinary course of trade. A declaration stating that the mark is in use must be filed between the fifth and sixth years after the registration issues, and then a renewal application must be filed prior to the expiration of the ten-year anniversary date from the issuance of the registration. Failure to file this declaration will result in the cancellation of the registration.
- Statements or filings regarding use must be submitted on the following schedule: A declaration stating that the mark is in use must be filed between the fifth and sixth years after the registration issues, and then a renewal application must be filed prior to the expiration of the ten-year anniversary date from the issuance of the registration, and renewal every ten years thereafter.
- An action for non-use of a trademark can be brought by:the trademark office, "ex officio" (The USPTO may now issue post-registration office actions requiring evidence of use on multiple goods or services for Section 8 and 71 trademark renewal affidavits.);any interested third party;
- Non-use can be excused under the following circumstances:import restrictions;other government policies;other: acts of God.
- Resumption of use after non-use for the prescribed period (see above) may cure non-use provided that, in the interim, no third party has:filed an action for cancellation of the trademark on the ground of non-use.
- Use of a registered trademark in a modified form would not affect the enforceability of a registration and is allowed if the difference is slight and provided that the modification does not materially alter the distinctive character of the trademark. Consult a local trademark attorney.
- Amendment of a registration to conform to a modified form of the trademark is possible. It is not possible to amend a registration if the mark has been materially changed. It is advisable to consult a U.S. attorney before making any changes to the mark to see if it constitutes a material alteration.

VII. Post-Registration — B. Cancellation

- Cancellation is available. Third parties may petition to cancel registrations that have not become incontestable through five years of continuous and substantially exclusive use of the mark.
- The following can be grounds for cancellation:proprietary rights, such as an earlier conflicting registration;the mark is descriptive, i.e., it consists of a sign or indication that may serve in trade to designate the kind, quality, quantity, intended purpose, or value of goods or of rendering of services, or other characteristics of goods or services;the mark is not distinctive;the mark is misleading, deceptive, or disparaging (Following the U.S. Supreme Court's decision in *Matal v. Tam*, 137 S. Ct. 1744 (2017), disparagement is no longer a basis for cancellation.);the mark is functional;the mark is generic, i.e., the mark consists exclusively of signs or indications that have become customary in the current language or in the bona fide and established practices of the trade;the mark is against public policy or principles of morality;the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention;the mark includes a badge or emblem of particular public interest;the application for or registration of the mark was made in bad faith;other: fraud.
- There is a deadline for bringing a cancellation action, but only on certain grounds, i.e., prior rights and descriptiveness. There is no deadline for bringing a cancellation action on other grounds, such as abandonment, fraud, and genericide; a cancellation action on such grounds can be brought at any time.
- The deadline for bringing a cancellation action is: Where applicable, the deadline is five years from the registration date.
- The following parties may bring a cancellation action:any interested party;the owner of an earlier right.
- Cancellation actions can be filed online at the following URL: <https://esta.uspto.gov/>

VII. Post-Registration — C. Renewal

- The following documentation is required for renewal:power of attorney;declaration of use;proof of use.
- Acceptable proof of use/declaration of use documents are:declaration from proprietor;specimens or samples of the trademark as used;details of goods/services for which the trademark has been used;use by licensee.
- The first renewal date of a registration is:10 years from the registration grant date.
- Subsequent renewals last for the following period of time:10 years from the renewal date of the registration.
- The renewal pre-payment period is:no more than the following number of months before the renewal date: 12.
- There is a grace period for renewing registrations once the renewal date has expired.
- The grace period after the renewal date has expired is:6 months.
- The penalty for late renewal is:a fine.
- Renewal can be effected online at the following URL: <https://teas.uspto.gov/postreg/s08n09>
- At the completion of renewal, a new registration number is not issued.

VIII. Customs Recordation — A. Customs Recordation

- Trademarks that are registered in this jurisdiction can be recorded with the customs

authority, the name of which is: U.S. Customs and Border Protection.

- Recordation with the customs authority can be accomplished online at the following URL: <https://iprr.cbp.gov/>

IX. Domain Names — A. Domain Names

- A domain name may be protected as a trademark only if the domain name is not merely a Web address but is used or intended to be used in connection with goods or services. A domain name must be used as a trademark and/or service mark in order to be protected as such. There is no inherent trademark protection for mere web addresses.
- The following approved registrars can register a domain name in this jurisdiction: The list of ICANN-Accredited Domain Name Registrars can be found at <https://www.icann.org/en/accredited-registrars>
- Availability of domain names in this jurisdiction can be searched through the following website(s): <https://www.whois.us/>
- The Country Code Top-Level Domain (ccTLD) for this jurisdiction is: .us
- To obtain a domain name under the ccTLD in this jurisdiction, the following is required: a local address; local business activity; other: the applicant must satisfy one of three U.S. Nexus categories (see https://www.ntia.doc.gov/files/ntia/publications/ustld2007_34_apph_nexus.pdf) and must certify that they have a “bona fide presence in the United States.”
- Domain name registrations can be assigned.
- Domain name registrations can be licensed.
- A domain name registration may be contested in this jurisdiction through the following mechanisms: other: the uSTLD Dispute Resolution Policy: <https://www.about.us/policies>
- Once a registration lapses as a result of failure to renew, it cannot be revived or restored. However, it can be reregistered.
- The application to register a domain name as a trademark will be examined for conflicts with prior trademarks.
- An earlier-filed domain name registration cannot create rights effective against a later-filed trademark application filed by another. The USPTO does not cite domain name registrations as obstacles to trademark applications; however, domain name registrants who also use their domain names as marks may be in a position to oppose a trademark application based on prior rights and likelihood of confusion.
- In general, the courts do not apply the same principles to domain name disputes as are applied to trademark disputes. The following unique considerations are of particular note: Under Section 43(d)(1)(A) of the Lanham Act, 15 U.S.C. § 1125(d)(1)(A), domain name registrants “shall be liable in a civil action by the owner of a mark, including a personal name which is protected as a mark under this section, if, without regard to the goods or services of the parties, that [domain name registrant]— (i) has a bad faith intent to profit from that mark, including a personal name which is protected as a mark under this section; and (ii) registers, traffics in, or uses a domain name that— (I) in the case of a mark that is distinctive at the time of registration of the domain name, is identical or confusingly similar to that mark; (II) in the case of a famous mark that is famous at the time of registration of the domain name, is identical or confusingly similar to or dilutive of that mark; or (III) is a trademark, word, or name protected by reason of section 706 of title 18, United States Code, or section 220506 of title 36, United States Code.” Thus, in addition to proving likelihood of confusion or dilution, in order to prevail in a domain name dispute, a trademark owner must also prove “bad faith intent to profit.”

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